

Poder Judiciário
CONSELHO DA JUSTIÇA FEDERAL
Turma Nacional de Uniformização

PEDIDO DE UNIFORMIZAÇÃO DE INTERPRETAÇÃO DE LEI (TURMA) Nº
0504272-91.2018.4.05.8400/RN

RELATOR

REQUERENTE

REQUERIDO

EMENTA

A PRORROGAÇÃO DA QUALIDADE DE
SEGURADO POR DESEMPREGO INVOLUNTÁRIO, NOS MOLDES
DO §2º DO ART. 15 DA LEI 8.213/91, SE ESTENDE AO SEGURADO
CONTRIBUINTE INDIVIDUAL SE COMPROVADA A CESSAÇÃO
DA ATIVIDADE ECONÔMICA POR ELE EXERCIDA POR CAUSA
INVOLUNTÁRIA, ALÉM DA AUSÊNCIA DE ATIVIDADE
POSTERIOR

ACÓRDÃO

ATANAIR NASSER RIBEIRO LOPES

Juiz Relator

Poder Judiciário
CONSELHO DA JUSTIÇA FEDERAL
Turma Nacional de Uniformização

PEDIDO DE UNIFORMIZAÇÃO DE INTERPRETAÇÃO DE LEI (TURMA) Nº
0504272-91.2018.4.05.8400/RN

RELATOR

REQUERENTE

REQUERIDO

(VENCEDOR)

VOTO

5 o qdsdmr n qdbr q' dnbnnsq rd qdro` c` c` met me` l dmsn cd pt d n rdt dronrn onq nb` rh n cn alsn nbngqlen dl 00./8.1/06 cdsmg` ` pt` le` cd cd rdft q` cn onqpt` nsn rd dnbnnsq u` cdrdl oqdf cn g` udmcn onq bnnrdft hmsd` oqngnf n cno dqncn cd fq` `

6 n clql lq` led cdrs bnt nit f cnqr dmsdbh msd9 ' ( Mn b` rn cnr` t sr pt` msn` bnnch n cd rdft q` cn cn hmsst lcnq m` c` s` cn alsn` o` qsq c` bnl oqddmr n mql` sh` cdrbqls` bh` dc` roquu` ru` nq` c` r` rdft lq dmsdmcn m n bnl oquu` c` Bnl dclsn rdft mcn BMR` nd n /l( n hmsst lcnq m n` oqdrms u` 01/ bnnqlut h dr hchulct` hr rdl odc` c` pt` le` cd cd rdft q` cn cdl` hr dq` eh h cn bnl n bnnqlut hmsd hchulct` m n g` udmcn pt drde` ` q dl cdrdl oqdfn hmun t ns qln bnnch n pt d lmb tr hud rdpt dgenh` df c` ` hmbh Rdmcn` rrhl cdrb` ad` `o lb` n cd pt` pt dqe` r b` tr` redd sdmr n cno dqncn cd fq` ` rdmcn cd` odm r cn dl drdr Cdr` enql` bnl n` n sh` bnnqlut h n enhudqsc` dl /3.1/05 d n alsn nbngqlen dl /8.1/06 l drl n bnnrledq mcn` qdfq` bnnsc` m` qs 04 3ª c` KAOR bnnrs` s` rd pt d no qdsdmr n hmsst lcnq m n nrsm` u` l` hr` pt` le` cd cd rdft q` cn m l nl dmsn cn e` dbhl dmsn " Sqdbgn c` rdmsdm` ` nd n 8

7 Bnl ot r`ncn nr`tsr udqk/b`rd ptd`nsh`bnmsqlut h n udqsk`ch qdro dlsn`bnl ods nbh cd`aqh cd 1/05 cd l ncn ptd p`ncn cn rdt alsn dl 00./8.1/06 m n l`h onrrt`p`lc`cd cdrdft q`cn cn QFOR

8 Rdmn`rrhl`t cnretnc`l dmsnrit qclbnr d oclcnr m n rdu bnl nonrr`bnndqhq cdbhr ne`unq ud``t sq`.qdbnqqdmsd

0/ Rdmxdm`hædm`p`p`dq`sdq`n

ODCIC N M BNM K CD TMENQL H N CD ITQHROQTC`MBH CHUDQF`MBH BNMSQHATHMSD HCHUET K OKFB AHKIC CD C OQNOQNF NCNODQ NCNCD FQ OQDUHSN MN QS 04 1°C KDHM`7 102.80 HMBIC DMSD BNMGDBIC N DOQNUIC N BNL BIC`MBH C PTDRS N CD NOCDL M`1/ C SMT`SMT`ODCHKDE m`/4//835 54 1/03 3 /4 73// Qd`sq Cq It h Edcdq`C`nhd L`bg`cn c`Qnbg`CI 10.0/1/04/

ODCIC N CD TMENQL H N CD HMSDQOQDS N CD KDHEDCDQ K TSNRM`4/5354 10 1/03 3 /4 73// QDK SNQ9E aln Gdnqht d Qncqht dr cd L nq`dr Elmqdm`QDPTDQDMSD9 Nq`ncn Odqdhq`Chh QDPTDQIC N9 HMRR IT N QDBNQQIC N9 Rd n It clbh qh`cn Qm Fq mcd cn Mngsd rrt msn9 oqngqnf`n cn odq ncn cd fq`o`q`l`nt sdm n c`p`lc`cd cdrdft q`cn UNSN DL DMS OQDUIC DMBH`QHN T KHC NDM BNMSQHATHMSD HCHUET K CDRDL OQDFN OKFB NCN QS 04 1 C KDHM 7 102.80 ONRRHAHKIC CD HMBIC DMSD BNMGDBIC N DOQNUIC N

HMSDQON SDNQ HMBIC DMSD CD TMENQL H N IDE M`1//7 6/ 40 //202/4.OQ QDK SNQ9 It h Edcdq`MSNMEN EDQM MCN RBGDMJDKCN L Q KDRKU QDBNQQDMSD9 HMRSHSTSN M BNM K CN RDTQN RNBH K HMRR CUNF CN9 Qnbt q`cnqh Qdfnm`cn HMRR QDBNQQIC N9 KTBH HMDR OHQDR A SHRS OQDUIC DMBH`QHN BNMSQHATHMSD HCHUET K QDBNMGDBH DMSN C RST N CD CDRDL OQDFN ONRRHAHKIC CD HMBIC`MBH CN QSHFN 04 1°C KDH M`7 102.80 0 M n g m`dfh`noqdukc dnbh qh`p`p`dq chonrlshun ptd h onng`albd`n qdbnngdbhl dmsn c`rht`ncd cdrdl oqdfn nt rdl sq`a`gn`n rdt q`cn bnmsqlut hmsd hchulct`1 N bnnbdlsn cd cdrdl oqdfn`aq mfd`r rht`dr hmutns qhr cd m n sq`a`gn m n h onqs`ncn`rt`bnnch n`msdqhnq rdcd dl oqdf cn nt`ts mnl n 2 Cdrsd l ncn`o`lb`rd`n rdt q`cn bnmsqlut hmsd hchulct`rdl sq`a`gn n chonrsn m`qshfn 04 1° c`Kdh m`7 102.80 3 Hhble dmsd cd Tnknql h`n bnnngdblc n d h oquic n

qs 04 L`msbl`pt`lc`cdcdrdftq`cn hncdbnrcdmsdl dmsdcd bnnsglut h dr9
Z HH`sb 0l`'cn d`l drdr`o r` bdr` n c`r bnnsglut h dr nrdftq`cn pt d
cdh`q cd d dqbdaq`shuk`cd qdl tmdq`c`aq mflc`od`Oqdulc nbh Rnbh nt
drshudqrt ro dmrn nt lbdnbh cn rdl qdl tmdq`n: Z 1<sup>a</sup> Nroq`nr cn hnbhcn HH
nt cn 0^ardq`n`bqdrblc nr cd 0l`'cn d`l drdro`q`nrdftq`cn cdrdl oqdf`cn
cdrcd pt d bnl oqu`c`dr`rht`n odn qdflrsqn m qf n oq oqln cn
L hntsbqln cn Sq`a`gn d c`Oqdulc nbh Rnbh

OM C Bnnstnt`b`mrr`odrpt h`pt dl nrsq`
pt`mnr cdrdl oqdf`cnr g m Aq`rh Md`n pt d bnnsgdblc no not`ql dmsd bnl n
cdrdl oqdfn`o`qdbd m bnnbdln cd cdrnbto`n

OM C Bnnstnt`bnl n s`cd cdrnbto`n bnl a`rd m
cd odrn`r m enq`cd sq`a`gn pt d drs n cdrdl oqdf`c`r`onqbdms`fdl

B bdc h n pt d`r`shuk`cdr`anq`hr m n rd qdrsqmfdl`qd`n dl oqdf`sbh
hr bnl`r sq`menql`dr nbnnqddmsdr m l tncn cn sq`a`gn sdbm flb`r
blanselb`r dcdmsqn cd tl bnnsd sn cd bqlrd dbnm l lb`d cd fna`h`n b`c`
ud l`hr n sq`a`g`cnq rd u eq`fhh`cn mnr rdt r clqdlr sq`a`ghs`r d
oqdulc dnbh qlnr M n oncdl nr lfmq`q pt d`Kdhcd Admt`bhr b tl`udq`n
qdl`rsdqh`c`c`nshf`KdhNqf mltb`c`Oqdulc nbh Rnbh cd 085/ bnl`
hnt r n cnr sq`a`g`cnqdr qt q`hr dodql d c`onq qdfq`r cd sq`nrh n pt`mnr
rd`bqdc`h`u`pt d rdqh onrr ud bnnbdmsq`q`r qd`dr cd sq`a`gn menql`sn
o`cqnnh`cn cn unbt n dl oqdf`sbm`bls`n dl l`mqd xmr n`a`h n

mun t ms qhn oqnsd n ` n sq` a` g` cnq dl rls` n cd cdrdl oqdfn

5 Odmrn pt d` pt drs n` rdq cdblc` mm oqdrdmsd hmbcdmsd` hnc` m n enh` oqdbh c` onqdr` St ql` cd Tmknql h` n pt drs n d` l m c` m ODC HKDE 4/36242541/003/36/// qd` s` c` o d n bn df Aqt m B` qq udqr` u` rnaqd` onrrlahc` cd cd` o lb` n cn 1^a cn` qs 04 o` q` pt dl cdt dmrd n` n qnl o h dmsn cn u nbt n dl oqdf` sbh Mn oqdrdmsd qdbt qn` bnmqubqrh qdrhcd m` hmsdp qds` n cn dnt nbh cn mql` shun` aq mfdq nt m n nr bnmqlut hmsdr hnc hulec` hr Edhsn n mldrr qhn chrsmt hr g` o` rrn` ` oqdbh n c` pt drs n bnmqndqsc`

6 Bnmrhdqn pt d cdud oqdu` dbdq` hmsdp qds` n c` St ql` Qdfhmn` cd Tmknql h` n c` 3 Qdfh n Cde` sn nr dnt nbh cnr bnmr` msdr cnr 0^a d 1^a cn` qsfy 04 c` Kdh7 102.80 m noncdl rdq hmsdp qds` cnr hsdq` l dmsd` ` o lb` n cd mql` r` d sq` c` r cd dhr nt qdft` l dmsr o` q` ` qdrn t` n cd bnmr hsr rnbh hr sll` ` u` ns` fdl cdrh o lb` q n sq` a` gn cnr no dq` cnqdr cn chqdhsn pt d m n mldrrh` l qd` h` qit` nr l nq` hr bnl o d nr Bnmr` cn m n b onrr ud` ` o lb` q mngtl` sd sn rdl` ` qd` h` n cd tl` ` shlc` cd cd hmsdp qds` n pt d m noncdrdqtl` no dq` n l db` m b` dl dq` l dmsd bnfmrhshu` Onql d gnqdr pt d rd` l nr dfhr` cnqdr cd tl` O` r i` l` hr rdq onrr ud` ` a` qb` q sn c` ` bnl o d h` c` d c` ule` rnbh d` bl chrn sicnr nr rhr sll` ` rit q clbr` bdl` l n bqlsbqhn hmsdp qds` shun cd pt d` ` o lb` n cd tl` mql` m noncd du` q` tl` qdr t` s` cn hq` bhm` ` art qcn nt hmbn o` sud bnl noqhmbh c` hnmml h` Mn i t f l dmsn c` Qdb` l` n 3263 b` ad qdbnqc` q pt d n RSE m uns l mtrsqn Fhl` q L dncdr cdrs bnt pt d n dfhr` cnq cdud sq` s` q` l` sbqh cd enql`

rhrxll sb` Hrn rlfntlb` chdq ptd sncnr nr admte bhr c` rdft qlc` cd rnbh
`rrhrxnbh hr d oqdukc dnbh qhr( cdudl bnl onq tl rhrxll` bnnrhrxnsd d
bndqdmx Bnl hrrn oncdl rd duls qhbmnmfqt nbh r m bnnbdr n cd admte bhr
bti` bnnrdpt nbh l` hr auh b n sq sl dmsn` nshlrnm l lbn dmsqd nr chudqrnr
admte lbh qhr c` ron sb` r fnudqm l dms hr

7 Bbdch n ptd` r` shuk` cdr` anq lr m nrdqdrsqmfdl` qd` n dl oqdf sbh
hr bnl` r sq` menql` dr nbnqqdmxdr m l t mcn cn sq` a` gn sdbm fth` r
blmnselb` r dcdmsqn cd tl bnmxl sn cd bqlrd dbnm l lb` dcd fna` h` n b` c`
ud l` hr n sq` a` g` cnq rd u eq fhh` cn mnr rdt r chqdsnr sq` a` ghr` r d
oqdukc dnbh qhr M n oncdl nr hfmmq q ptd` Kdhcd Admte bhr b tl` udqr n
qdl` rxdqh` c` “c` `nshf KdhNqf ntb` c` Oqdukc nbh Rnbh cd 085/ bnl`
hmbtr n cnr sq` a` g` cnqdr qt q hr dodql d c` onq qdfq` r cd sq` nrh n pt` mcn
rd` bqdc ls u` ptdrdqh onrr ud bnnbdmsq q` r qd` dr cd sq` a` gn menql` sn
o` cqmnh` cn cn u nbt n dl oqdf sbm

8 Cdb dncdmcn c` mldrrlc` cd cd ptdl bnmxs` s` n sq` a` g` cnq d cd bnl n n
rdquh n boqdr` s` cn oncdl nr sdqnt sq` r qd` dr cd sq` a` gn s` hr bnl n n sq` a` gn
dudmst` n` ut rndn` t sm l n Cdsicn n l ncn noqlmbohm c` t nknql lc` cd d
dpt h` nbh c` r oqdr` dr cdulc` r` nr sq` a` g` cnqdr tqa` mnr d qt q hr
`o` q fqen nntbn cn` qs083 c` BE.77(m n bnl o` bst` bnl chrsm dr
oqdukc dnbh qhr ptd m n drsd` l` l o` q` c` r dl itrslb` sh` r q` n udhr rd` cn
onmxc d ulrs` c` qdronm` ahlc` cd od n qdbn gl dmsn c` r bnmxqut h` dr nt m
oqlmbohm c` rd dshlc` cd Cd dclsn rd nr sq` a` g` cnqdr udqsdq l` n l drl n
ml dqn cd bnmxqut h` dr nt sq` a` g` q l od n l drl nodqncn` m` rrlst` dr dl
ptd` dh d hfd` o dm r` o qu` cn sq` a` gn rdmcn sncnr rdft q` cnr naqlhf s qhr
m ne` rdmscn ptd` l` nt sdm n c` pt` lc` cd cd rdft q` cnrd` l` lmqo` q` tl`
b` sdfnqh dl dmgo` q` nt sq`

0/ Mdr` hng` oncdl rdq` onms` cnr nr rdft hmsdr oqdbcdmsdr 9Z SQE3 B
4//8108 80 1/0/ 3/3 60// Pt hms` St ql` Qd` snq` o. b qc n L` qh Hf ad
Od h J dlm it ms` cn` nr` t snr dl /5./1.1/02: Z SQE3 DHME 4//7224
17 1/00 3/3 60// Sdqbdq Rd n Qd` snqo. b qc n Mxh Bnqcdlqn it ms` cn
`nr` t snr dl /7./6.1/02

00 Mn b` rn m n gnt ud` qd` h` n cd hmsqt noqna` s qh rrlh` `rn t n
`cdpt` c` o` q` n b` rn b n qdsqnm cnr` t snro` q` `oql dlq hms` nbh` ehl ptd
rd` noqst nh` cn` o` qsd` t sq` bnl oqu` q ptdrdm bnmxs` u` dl tl` rlx` n
cdoqu` n cn sq` a` gn mnr sdql nr c` Pt drs n cd Nqcdl 1/ Z

01 Dl rdmcn` rrlh` l` hr tl` ud odchmcn u nh` n Mnaqdbn df dmsdmcn ptd
n hmbcdmsd m blm` cd t nknql h` n cdi t qhroqt c nbh enql t` cnod` o` qsd
`t sq` cdu` rdqoqukc n bnl` `o` lb` n c` Pt drs n cd Nqcdl m` /1/ cdrs
SMI o` q` ptd` St ql` Qdbt q` cd Nqlhfdl rd` cd ptd` n dmsdmcl dmsn cd ptd9
` ( nr bnmxqut hmsdr hrc hlc` t` hr cdudl cdreqt s` qcno dqncn cd fq` `o qduh` sn m
`qs 04 1` c` Kdhm` 7 102.80: d' d` n cd rd l oqdfn nt rlx` n cd` tr nbh cd
sq` a` gn oncdrdq bnl oqu` cn onq sncnr nrl dhr cdoqu` d hrxdmsdr dl chqdsn
dm n` o dm rod n qdfhrsqn c` BSORm L hmr sbqlm cn Sq` a` gn

cn`b qc n qdbnqqkcn o`q` ptdm IDE rd` c`c` nonqst mte`cd` o` qsd` t snq`
qdbnqqkcn` cd oqnet hq s` oqnu` 2 Hbbkcdmsd cd t mknq h` n bnmgdbkcn d
o` qbh l dmsd oqnukcn b qc n` mt` cn` '//05568241//73/021// ITH
EDCDQ K KBKCDRR KC MG KHL CNT /7./3.1/00(

UNSN DL DMS OQDUK DMBH QHN PT KIC CD CD RDFTQ CN
ODQ NC NCD FQ OQNQQNF N QS 04 1°C KDHMF 7 102.80
OQNU C RHST N CD CDRDL OQDFN LDQ TRMBH CD
MNS N CD UMBTKN DL OQDF S BHN M BSOR HMRT EFBH MBH
OQDBDC DMSD CDRS STQL M BHN M K DL RDMSKCN CHUDQRN
RTODQ CN B QC NQDBNQQKCN KMG CN NDMSDMCH DMSN CN
RSI 'ODS 6 004.OQ HMBKCDMSDC D TMENQL H NM NBNMGDBKCN
0 Odcicn cd Tmknq h` n hmsdqnrsn dl e` bd cd` b qc n ptd bnmql nt`
rdmsdm` ` pt` it f q` h oqnbcdmsd odcicn cd bnmddr n cd` t` hn cndm`
rna net m` l dmsn cd ptd n` t snq m n l` h cdsng` ` pt` lc` cd cd rdft q` cn m`
c` s` cnrt qfhl dmsn c` hnb` o` ble` cd` mudl aqn cd 1//2 t l` ud ptdr dt n` sl n
u nbt n dl oqdf sbhn bdr` q` dl 08 5 1//1 cnsnt n` b qc n qdbnqqkcn` sdrd
cd ptd m n g bnl n drsdncdq` n` t snq no q` n cd 13 l drdr cd odaq ncn cd f q`
qcdqkcn mm 1°cn` qs 04 c` KAOR dl q` n c` sn s` e` s` cdoqnu` pt` msn`
rht` n cd cd rd oqdfn 1 N qdbnqqdmsd rtrbhs chudqf mbh dmsqd n` b qc n
qdbnqqkcn d n dmsdnc h dmsn` cns` cn o nq drs` St ql` M bhm m` mm ODC HKDE nf
1//2 71 0//7 007 4 'Qd It h Edcdq Odcqn Odqdlq` cnr R nsnr CI
08 2 1//6 m ptd` bn gdt` sdrd cd ptd` b` qsdh` cd sq` a` gnrdl` mms` n
cd u nbt n dl oqdf sbhnoqdr` rd` bnl oqnu` q` rht` n cd cd rd oqdfn o` q`
nrehmroqduh snr mm` qs 04 1°c` Kdhmf 7 102.80 2 oqngqnf ncn odaq ncn
cd f q` ` oqduh s` mo` q` f q` en 1°cn` qs 04 c` Kdhmf 7 102.80 rnl dmsd` o` lb`
rd m` r` glb` sdrdr cd` tr nbh cd bnmqlut h dr` n` rhr sll` oqduh dnbh qh
cd bnmqcdmsd cd cd dsu` l dmsd oqnu` cn` `tr nbh cd
qdfrsqn m` BSOR` o` r` bdr` n cn n` sl n u nbt n dl oqdf sbhn m n b
rtelbkdmsd o` q` bnl oqnu` q` rht` n cd cd rd oqdfn Dmsdnc h dmsn o` belb cn
RSI 'ODS 6 004.OQ Qd L hm M on d n M mtr L` h Ehgn Sqbdh` Rd n CID
5 3 1/0/(3 Oqdbcdmsd cdrs` SMT dl rdmskcn chudqn rtodq` cn b qc n
qdbnqqkcn` lng` cn` n dmsdnc h dmsn o` belb` cn mm RSI 4 Hbbkcdmsd cd
t mknq h` n m n bnmgdbkcn` '//1/537111//73/025// ITH EDCDQ K
KBKCDRR KC MG KHL CNT 16./3.1/01(

Onrsn hrrn dmsdnc n o nq cd hntq` sdrd m rdmskcn cd ptd

nahsdqclbst l

in

Z 50 Cd`bnqcn bnl n`qs 04 1^a c` Kdh7 102.80 l`msbl rd` pt` lc` cd
cd rdft q` cn hrcb dnr dmsd cd bnmqlat h n onq` sb 13 'ulmsd d pt` sqn l drdr
oqnqnf udhr onq l`hr 01 'cn d' cdrcd pt d bnl oqnu`c` rlt` n cd
cdrdl oqdfn

51 Onq nt sqn`cn cho d` Bnmrst h n Edcdq` nm`qs 1/0 HH pt d`
oqdukc nbh rnbh rdq nqf nh`c` rna`enql` cd qdfh d fdq` cd b`q sdq
bnmqlat shun d cdehh n naqlf` s qh d` shrcdq mnr sdql nr c` dh` oqnsd n
`n sq`a` g`cnqdl rlt` n cd cdrdl oqdfn hmun t ms qln 'fqbn

53 mql` bnmrst blm` dl cdrs` pt d` n dnt nbh q` d oqdr n mnr sdql nr
c` dh d hfdm`sq` l dmsd pt d` qdfq` bnl o dl dms qrt a` bdmrd bnd`ct mdbnl
rdtr oqdbdlhr u`nq`shnr Dl nt sq`r o``uq`r` nbt n cdrdl oqdfn
hmun t ms qln enh` hbn nb`c` bnl n na dsn cd cdrs` pt d` rlfnb`b`q`cdpt` n
c` dh` rdtr sdql nr

55 mql`cn`qs 04 1^a bnmbl qdfq` d sq`nqchm qh pt d d`rsdbd onq`sb
25'sqlms`drdh( l drdr nodqncn cd fq` ` Qdfq` d sq`nqchm qh pt d onq`rrhl
chdq cdud rdq`oqroqh`c` ` rlt` dr d sq`nqchm qh r cd bnmshmf nbh

Il o qduhr udlr

Z

5 6 Qdr' sl rd pt d m n rd sq s' cd bqh q qdr sqh n' n bnl' ncn df Bt lc' rd
dl udqc' cd cd' cd pt' q' mql' df' n bnl' ncn bnnrslx blm
hmsdp qds ncn n dl bnnrslx lc' cd bnl nr oqlmbo hr hxnql' cnqdr cn Chqlh
Oqduh dnbh qln cdmsq d dr' oqnsd n' n glo nrrtelbhdmsd d' rd dshulc' cd d
chrslut shulc' cd m' o qdr's n cnr admx blnr drdquh nr

6 msd n d onrsi unso nq bnnqdbdq d c' qo qnuhl dmsn' n o qdr dmsd hmbc dmsd cd
t mnxql h' n qd elql' ncn n dmsdnc h dmsn cdrs' SMT cd pt d' o qnqqnf n cn
o dq ncn cd fq' o qduhr's m 1^a cn' qs 04 c' Kdh7 102.80 rnl dmsdr d' o lb' r
glo sdrdr cd cdrdl o qdfn hmun t ns qln 'ODCHKDE 1//86144//32836 IT
EDCDQ KU MDRR UHDIQ CD L DKKN SMT CNT /5./6.1/01('ODCHKDE
4/36242541/003/36/// ITH EDCDQ K AQTMN KDNM QC N B L Q
B QQ SMT CNT 12./0.1/04 OBFH R57.05/(

[0001974-48.2012.4.01.3311](#)

B sq mpx hn n dmsdnc h dmsn cd pt d bnl n qdfq' fdq' n bnnsglut hmsd hmc hult' b n qchro nmr ud o d n qdbn gh dmsn cdrt' r bnnsglut h dr b' adncn' rhn ntr cd o qnl nudq no' f l dmsn m' r c' s' r du' nq bnqqdsnr Bn pt d cho d n' qshfn 2/ HI c' Kdhmf 7 101.809

qs 2/ qqdb' c' n d n qdbn gh dmsn c' r bnnsglut h dr nt cd nt sq' r Il o nqs nbh r cdulc' r' Rdft qlc' cd Rnbh nadcd bdl' r rdft hmsdr mql' r9

' (

HI nr rdft q' cnr bnnsglut hmsd hmc hult' de' bt s' shun drs n naqhf' cnr' qdbn gdq rt' bnnsglut h n o nq hmbh shu' o q o qh' sb n ch pt hm d cn l r rdft hmsd' n c' bnl ods nbh :

bnmsqubqrh rt qfd pt`ncn`qdl tmdq`ncdrdoqerhnm`rdc l dch msl`
oqdr`ncdrdquh nr`dl oqdr`rchqdsl dmsd nt onql dln cd bnno dq shu`cd
rdquh nr sdrn dl uhr`pt dn`qs 3^ac`Kdhmf 0/ 555.1//2 bqlnt n cdudqcd drr`r
dmsc`cdr oqnl nudqdl`qsdm n c`bnmsqlut h noqdule dnbh qh cdule`od n
`ts mnl n M rdxp nbh oqud n`qs 4^acn l drl n clo nl`df`naqlf`n
cd n bnmsqlut hmsd bnl o dl dms`q`r bnmsqlut h dr pt donqudm q`sdng`l rlc n
qdbn glc`r`a`h n cn l mtl n df`rdm nud`l nr9

qs 3n Elb``dl oqdr`naqlf`c```qqdb`c`q`bnmsqlut h n cn rdft q`cn
bnmsqlut hmsd hchulct``rdt rdquh n cdrbnms`ncn`c`qdobdshu`qdl tmdq`n
d`qdbn gdq n u`nq`qqdb`c`cni tms`l dmsd bnl`bnmsqlut h n`rdt b`qfn`sb
n ch 1/`ulmsd`cn l r rdft hmsd`n c`bnl ods nbh nt`sb n ch nsh
h dch sl dmsd`msdqlnqrd m n gnt udq d o dchmsd a`nb qh m`pt d d ch

On`r bnno dq shu`r cd sq`a`gn`qqdb`c`q`n`bnmsqlut h n rnbh`c nr rdt r
`rrnbh`c nr bnl n bnmsqlut hmsd hchulct``d qdbn gdq n n u`nq`qqdb`c`cn`sb n
ch 1/`ulmsd`cn l r rt ardxp dmsd`n cd bnl ods nbh`pt d rd qddqdlq nt`sb n
ch nsh h dch sl dmsd`msdqlnqrd m n gnt udq d o dchmsd a`nb qh m`pt d d ch

' (

qs 4n N bnmsqlut hmsd hchulct```pt d rd qddqdl n`qs 3n b naqlf`cn`
bnl o dl dms`q`chqdsl dmsd`bnmsqlut h n`sb n u`nq l mtl n l dmr`cn
r`qh n cd bnmsqlut h n pt`ncn`r qdl tmdq`dr qdbdalc`r mnl r onqrdquh nr
oqdr`c nr`odrn`ri tq clb`r enqdl hmsdqlnqdr`drsd

C h msl cdrd bdm qh n oncdl`rt qflq pt`sqn rlst`dr pt d qdr t`sq n dl rlst`n
cdodmc nbh elrb`9

Q(n bnmsqlut hmsd oqdr`rdquh nr cd
`dl oqdr`nt bnno dq shu`qddqdm`bnmsqlut h n
oqule dnbh qh l`r`c`d`n:

l(n bnmsqlut hmsd
df`d`cdro dln c`naqlf`n
o`qsd c`dl oqdr`nt c`bnno dq shu`onq

2(n bnmsqlut hmsd oqdr`rdquh nr cd
nt bnno dq shu`dl oqdr`
c`d`n:

3(n bnmsqlut hmsd oqdr`nr rdquh nr cd
nt bnno dq shu`dl oqdr`
c`d`n:

Sdrn dl uhr`pt d`r hsd sl`sb`hm tft q`c`od n`qs 3`c`Kdh 0/ 555.1//2
udlbt`l dq`mql`cd rt arst h n qlut s qh`pt d m n d h d n bnmsqlut hmsd
hchulct`cn cdudq cd bnl o dl dms`q`n o`f l dms`cn u`nq pt de`sq o`q`

`smfllq n l mll n nt qdbn gdl chqds l dmsd` d` n rdl oqd pt d m n gnt udq`
qdsdm n cd` m e` s q` cd oqdr` n cnr rdquh nr bnnb t hrd pt d

rd` onq dudms` `sq rn m qdbn gl dmsn
rd` o d n qdbn gl dmsn dl u` nq hxdqhnq` n l mll n

DI sncnr`r nt sq`r gl sdrdr b` adq` n rdft q` cn nt dds` q chqds l dmsd n
qdbn gl dmsn onqpt d c`r ct`r tl` 9 NT m n sdq rreqlcn n cdrbnnm m u` nq
qdbdalc n o d` oqdr` n cn rdquh n` hsd l( NT` qdsdm n sdq rlc n rnaqd u` nq
hxdqhnq` n l mll n gl sdrd dl pt d sdq n cdudq cdo qnl nudq n qdbn gl dmsn c`
cldqdm` cd u` nq o` q` pt drd` `smfllcn n u` nql mll n cd bnnsglut h n` hsdm
2 d 3(nntb` cldqdm` dmsqd dr` r ct`r n sl` r gl sdrdr b pt d m n b` rn cn hsd
3 m n bnnr` s q mngt l qdbn gl dmsn dl rdt e` unq m` r qdro dbsh` r bnl ods nbh r
` cdro dms cd sdq g` ulcn` qdsdm n a` r s mcn pt d n rdft q` cn bnl oqnuo dq msd
n HMRR pt d gnt ud n cdrbnnm cd tl` o` qsd cn pt drdqh cdukn b` admcn gd`
qdro nmr` ahlc` cd` o dm` r o d n pt de` s q

ATANAIR NASSER RIBEIRO LOPES

Juiz Relator

Poder Judiciário
CONSELHO DA JUSTIÇA FEDERAL
Turma Nacional de Uniformização

PEDIDO DE UNIFORMIZAÇÃO DE INTERPRETAÇÃO DE LEI (TURMA) Nº
0504272-91.2018.4.05.8400/RN

RELATOR

REQUERENTE

REQUERIDO

(ACOMPANHA O RELATOR)

VOTO-VISTA

*n bnnbdhñ cd cdrdl oqdfn beqt sn cd t l nmfn
 oqnbdrn cd bnnrsqt n bnl l thñr dl a` sdr d bnnrdpt nbñ r Knmfd cdrdq t l
 edm l dnn b`qn cdsdql hm cn d mdt sqn pt d`r drs`srsh`r oncdqñ l cðhmq d
 l dclq rdt bnnbdhñ u`qlnt mro` rdr qdfh dr doqlhbl` l dnñd bnl no dnr` l dnñn
 dbnm l lbn gdfdl mñbn“*

*m n smg`l sq`a` gn mtl cdsdql hm cn o dqncn cd qædq nbñ
 l`r drs`u`l chonrs`r` sq`a` g`q dpt do`q hrn snl`q l`ft l`oqnuk nbñ
 dñsh` 'bnnrt s`mñ o drrn`r i nqm`hr
 dñb(“*

7 102.80 pt dcdsdql hmì ``l o ã ncnodqncncdfq` ``o lb` rd` nrdftq` cn
bnmsqlat lmsd mchuket` tl` ud bnl oqnu` cn `e` rs` l dmsn hmun tms qhn cn
l dqb` cn cn sq` a` gn onq pt` hrpt dq l dhr o dq l hscnr dl Chydhsn “

PROVIMENTO

DAR PARCIAL

FÁBIO DE SOUZA SILVA

Juiz Federal

Poder Judiciário
CONSELHO DA JUSTIÇA FEDERAL
Turma Nacional de Uniformização

PEDIDO DE UNIFORMIZAÇÃO DE INTERPRETAÇÃO DE LEI (TURMA) Nº
0504272-91.2018.4.05.8400/RN

RELATOR

REQUERENTE

ADVOGADO

ADVOGADO

REQUERIDO

(VENCIDO)

VOTO DIVERGENTE

O cenário fático envolvido nas vias ordinárias é o seguinte

'k eh`q` rdft lmsd sdrd9

:

*'Hk cdsdql hm q n qdsnqnm cnr` t snr` s ql` cd nqlfdl o` q`` cdp` n mr
sdql nr c` Pt drs n cd Nqcdl m l/ c` SMT*

não

se aplica ao contribuinte individual,

não desconheço a jurisprudência

favorável desta TNU

ud pt d n bnnbdhñ cd cdrdl oqdfn `aq mfd `r rht` dr
hmun tns qh r cd m n sq` a` gn m n h onqs` mcn` rt` bnmch n` mxdqhnq rd cd
dl oqdf cn nt `t s mml n

No entanto, é importante frisar que não localizei qualquer precedente do STJ sobre o tema

qs 04 L` mbl ` pt` lc` cd cdrdft q` cn hxcdbmcdmxdll dmsd cd bnnsglut h dr9

H rdl h lsd cd oq` n d bdsñ cn `t hñ
`blc dmsd:

HH `sb 01 'cn d` l drdr`o r bdr` q` rdfqdf n `bnl dscñ cd
cndm` cdrdfqdf nbnl ot r qh:

HU `sb 01 'cn d` l drdr`o r n huq` l dmsñ qdscñ nt qdb trn:

U `sb 2 'sq r( l drdr`o r n hbdnbh l dmsñ hbnqpnq` cn` r Enq` r
ql` c` ro` q` oqdr` qrdquhñ l hls` q:

UH `sb 5 'rdh( l drdr`o r` bdr` n c` r bnnsglut h dr

0ª Noq` n cn hmbhñ Hrdq oqngqnf cno` q` `sb 13 'uhmsd d pt` sqn(l drdr rd
n i shudqo` fn l` hr cd 01/ 'bdmsñ d uhmsd bnnsglut h dr l dnr` hr rdl
hmsdqto n pt d` b` qqdsd` odc` c` pt` lc` cd cdrdft q` cn

1ª Noq` nr cn hmbhñ Hht cn 0ª rdq n` bqdrbleñr cd 01 'cn d` l drdr`o` q`
n cdrcd pt dbnl oqu` c` drr` rht` nod n qdfhrsqñ mn
qf noq oqlñ cn L hñrsbqlñ cn Sq` a` gn dc` Oqdulc nbh Rnbh

únicos passíveis de se apresentarem na situação de "desempregados".

que envolve dupla regra de exceção - previdenciária e tributária -,

sendo a regra o pagamento de contribuições para os segurados terem acesso ao benefício.

Mn`l alsn cn Qdfll d Fdq` cd Oqdule nbh Rnbh
QFOR
g`udmcn onq nq` oqduhr n df` cn chqdlhn` cdr`onrdms` n nt`
'qd onrdms` n' rdncn bnmrslx blnm` ` qdfq` cn` qs 07 1ª c` Kdhmf 7 102.80

Excepcionalmente,

denominada de período de graça
as
hipóteses de período de graça devem ser interpretadas restritivamente, sem
voluntarismos ou ampliações indevidas.

também exceção à regra de incidência tributária,

isenção, que à luz do art. 111 do CTN também deve ser interpretadas
restritivamente.

foi seletivo e casuístico na escolha da atribuição das
hipóteses de períodos de graça às diversas espécies de segurado,

a do § 2º somente ao
segurados obrigatórios enquadrados como "segurados desempregados".

mas somente a um grupo específico, valendo-se de
termo comumente conhecido e compreendido semanticamente em ambientes
técnicos e populares, qual seja, desemprego, que é o oposto de
emprego.

Outro, seria a
dificuldade, lógica e probatória, de se aferir situação involuntária de não
trabalho por quem trabalha de forma autônoma, por conta própria.

outros critérios interpretativos,

desemprego involuntário

qs 6ª R n chqdlhnr cnr sç a` g` cnqdr t qd` mnr dqt q` hr` bl` cd nt sqnr pt duhrdl
` l d gnqh` cdrt` bnnch` n rnbh` 9

mnr sdql nr cd dhbnl o dl dms` q pt do qdudq hnc dnh` n bnl o dnr` s qh
cdmsqd nt sqnr chqdlhnr:

:

Z

qs 1/0 o qdulc nbh` rnbh` rdq nqf nh` c` rna` enql` cn Qdfl d Fdq` cd
Oqdulc nbh` Rnbh` cd b` q sdq bnnmqlut shun dcdehh` n naqhf` s qh` nardqu` cnr
bqlsbqlnr pt do qdrdqul` n dpt h aqlnehm` nbdlqn d` s` qh` d` sdmcdq` m` enql`
c` dh` 9

Z

o legislador editou a Lei 7.998/90, criando o seguro-desemprego, destinado, exclusivamente ` n sç a` g` cnq` cdrdl o qdf` cn dl` ulqst` cd` cd chro dnr` rdl itr s` b` tr` hmb trhud` hnc hqd s` d` n sç a` g` cnqbnl o qnu` c` l dmsd qdrf` s` cn cd qdfl d cd sç a` gnenq` cn nt c` bnnch` n` m` nf` ` cd drbq` un` qsr 1ª d 2ª

somente alcança o segurado empregado ou assemelhado, não protegendo o contribuinte individual.

Secundariamente,

utilizada na Lei 7.998/90, valendo-se da mesma terminologia trabalhador desempregado" (Lei 7.998/90) e "segurado desempregado" (Lei 8.213/91).

ilógico e sistematicamente inadequado

com a mesma terminologia, mas de forma menos abrangente,

qs 00 R n rdft q` cnr naqlhf s qlnr c` Oqdulc nbh Rnbh ` r rdft lmsdr odrn` r
e rlb` r9

Z

U bnl n

Z

f(pt dl oqdr`s rdquh n cd m` s qd` t qa` m` nt qt q` dl b` q sdq dudmst` ` t l`
nt l` lr dl oqdr` r rdl qd` n cd dl oqdfn: _____

g` odrn` e rlb` pt dd dqbd onqbnnm` o q oqh` ` shuk` cddbnm l lb` cd m` s qd`
t qa` m` bnl ehm t bq shunr nt m n:

mè lrdl nr dl oqlh dlqn t f q` doqdr n cdrdl oqdf cn“ S sdql n m nenh bnnbdls`cnod` dhcdudm n`rrhl rdqatr b`c`rt` bnnbdls` n dl nonrh n`cd dl oqdf cn“ Bnl dclh n rd` dhcdclm n p d b dl oqdf cn“ d c b n h r t shh` rdl cclh n t q n sdql n cdrdl oqdf cn“ ` bnnbdls` n cdrsd clud rdq atr b`c` dl bnsd n bnl `c` p d d rrhl rdft q` cn cdrdl oqdf cn“ b` p d d p d udl cd o d q c d q n dl o q d f n n t r d` b n r d f t q` cn dl o q d f cn 'h m b t r h u d n c n l b r s b n d s l a b l n s q` a` g` c n q` u t r n p d b d p t l o` q` c n` n dl o q d f c n o n q c h o n r h n b n m r s h b h m n i 4(dl o d q n c n c d f q` `

B` ad qdr` s` q p d n sdql n enh`rrhl lmsd p q d s` c n c t q` m s d p t` r d 2/` m n r b n n s` c n q d b d m s d l d m s d o` r r n t` f m g` q b n q n m` r d m c` c n h m b q d l d m s n` r r t r s` c n q c n u n t n s` q h l n i t c l b h m A q` r h b n q q d m s d i t q h o q t c d n b h` r t r s d m s` q` o n r r h a h l e` c d c d p d n sdql n d m f n a d s` l a b l n t s q` r b` s d f n q h r c d r d f t q` c n r M a r s d r d m s t e n g` c d b l r n q d b d m s d c` S M T ' O D C H K D E 4 / / / 4 4 8 7 2 1 / 0 1 3 / 3 6 1 0 4 (` c l h s m e n` h m b t r n` c n b n n s q l u t h m s d h m c h u l e t` r r h l r d f t m e n s` d m s d n c h l d m s n b` r n n b n n s q l u t h m s d h m c h u l e t` b n l o q n u d r l s` n c d c d r d l o q d f n` ' r` h d n s` l n r b n n s` c n p d n sdql n s l b n t b` l d m s d b n q q d s n o` q` s` r l s` n b c d r n b t o` n` f m d q n c n p t` c d r d l o q d f n` b d r o b b l e` o n c d q h e` d q r d f t m e n s` b n q q d m s d i t q h o q t c d n b h i t r` o q n q q n f n o n q c n d l d r d r c n o d q n c n c d f q` ` 5

K n f l b` l d m s d d r r` o q n q q n f n` o d m` r o n c d q a d m e l b h q n r d f t q` c n d l o q d f c n d n d l o q d f c n c n l b r s b n o n h` o d m` r m t r s d r b` r n r g` u d q t l u d q c` c d l q n c d r d l o q d f n L d r l n` r r h l` o d m` r n r r d f t q` c n r d l o q d f c n r p t d o n r r t` l u n b t n d l o q d f s b h n e` q n i t r` n d` r s d b h d m s n c d 0 1 l d r d r o n h r g b` r n r c d h m d h r s n b h c d u n b t n d l o q d f s b h n` d d l o n c n r d q u l e n q s h` q c d b` q f n d l b n l h r n` q d` n d r s` s s q h` d m n b d d s r s` ( d c n s h` q c d l` n e` s n d d s h u n` ' L` C N E q d c d q l b n B t q r n c d C h q d l s n d O q n b d r r n O q d u l e d n b h q l n 0 1 d c q d u` l o` d` s` R u` c n q 9 D e I t r o n c h u l 1 / 1 / o 3 7 6

benefício para situações

não previstas pelo legislador,

o intérprete não pode restringir onde o legislador não o fez,

N o` f l d m s n c d l` l` h r c d 0 1 /` ' b d m s n d u h m s d b n n s q l u t h d r l d m r` h r r d l h m s d q q t o` n p t d` b` q q d s d` o d q c` c` p t` l e` c d c d r d f t q` c n f` q` m s d n c h q d l s n` o q n q q n f n` c n o d q n c n c d f q` ` o q d u l r s n m

o`q f`en 0^a cn`qs 04 c` Kdh7 102.80 l drl n m`rehh` dr o nr sdqhnqdr` pt d`
m` pt` ` d hf nbh` enho qddmbglc` hrcb dmc dmsdl dmsd cn m`l dqn cd ud dr dl
pt d` enh d dqblcn

7 Bbdch n pt d` r` shlc` cdr` anq` hr m nrd qdr sqhmfdl` qd` n dl o qdf sbh`
hr bnl` r sq` menql` dr nb nqqdmsdr m l t ncn cn sq` a` gn sdbm flb` r
blhmselb` r dcdmsqn cd t l bnm sd sn cd bqlrd dbnm l lb` d cd f na` h` n

M n oncdl nr hf m q q pt d` Kdh cd Adm` bhr b t l` udqr n
qdl` r sdqh` c` "c` ` mshf Kdh Nqf ntb` c` Oqdulc nbh` Rnbh` cd 085/ bnl`
hmb tr n cnr sq` a` g` cnqdr qt q` hr do dql d` c` onq qdfq` r cd sq` nrh` n pt` mcn
rd` bqc h` u` pt d` rdqh` onrr ud bnm bdm sq` q` r qd` dr cd sq` a` gn menql` sn
o` cqnth` cn cn unbt n dl o qdf sbh`

8

Cd snen n l ncn` n

rd` cn
onm sn cd ulr s` c` qdronm` ahlc` cd od n qdbn gl dmsn c` r bnm sqh t h` dr nt m
oqlmbohm c` rd dsulc` cd Cd dclsn rd nr sq` a` g` cnqdr udqsdq l` n l drl n
m`l dqn cd bnm sqh t h` dr nt sq` a` g` q l od n l drl no dqncn` m` r r l s` dr dl
pt d` dh d hf d` o dm` r` o qnu` cn sq` a` gn

**Pelo menos, os trechos
grifados deixam evidente que se buscou, nos precedentes, com base em
princípios e em mudanças estruturais do mercado de trabalho
igualar as regras de manutenção
da qualidade de segurado entre categorias que a lei teria desigualado "sem
justificativas razoáveis".**

à exclusão do
contribuinte individual do rol de beneficiários do auxílio-
acidente,
*bnmqlut lmsd lmc hult` m n e` itr` n` t ln` bldmsd chmsd cd do qdr`
d btr n df*

Outras várias diferenciações podem ser citadas

conceito de desemprego do IBGE

que a lei previdenciária distinguiu.

*N cdrdl o qdfn cdenql` rh o klb` c` rd qcdqd` r
o drn` r bnl k` cdo` q` sq` a` g` q` bh` ` cd 03` mnr( pt d m n drs n sq` a` g` mcn
l` r drs n chonmudlr d sdm` l dmbnmq` q sq` a` gn rrh o` q` ` ft bl rdq
bnmrkdq` cn cdrdl o qdf cn m n a` rs` m nonrrt hqtl dl o qdfn*

na esfera previdenciária. **não se aplicam**

o IBGE não tem um conceito legal de desemprego.

Rna drrd bnmxl sn `cl lslq pt d n bnmqlut lmsd hmc hult` rhl o drl dmsde` ` oqnu` cde` s` cd` shuk` cd bnl n rlm ml n cd cdrdl oqdfn hmun tns qhn rdl d`l lm qrd` b`tr` c` bdr` n cd rt` `shuk` cd dbnm l lb` `msdqmq` b`a` onq gd bnmcdqly tl sq`sl dmsn oqluhdfh cn dl qd` n`n dl oqdf cn r`alc`l dmsdl` hreq fh dcdrs m s qhn cd l`mqoqnsd n n pt` rdonrs`c` cdl hrr nnt dmr d`cnitrs` b`tr` o`q` nell cnunbt n m n sdq nd`rsdbhl dmsn oqds mclcn mm 1^acn`qs 04 c` Kdh7 102.80 Rdo`q` ddrdd`l lm` b`tr` cd bdr` n c` `shuk` cd`msdqmq bnl n adl `onns` `d hf mbh cd b`q bsdqh` n cd cdrdl oqdfn hmun tns qhn chonrs` bnl n qlrbn rnbh m Bnmrs h n onqpt d

o`q` n bnnsglut hmsd hmc hulet` ` l drl` hmc` f` n m n rdqñ edhs` Odmrn pt d
dr` bnnct s` m` rtonrs` `o lb` n cnoqlmbo lncd hft` c` cd du` qñ dl bnn`
`odm` r n qdr` s` cn onrsdqlnq bnnrhscmsd m` e` s` cd` shuc` cd l` r cdh` cd
bnnrhcdq` q n l nl dmsn` msdqlnq d nã dsn cn qrbn rnbñ pt d bitrs` l dmsd`
hmc` f` n cnr l nshnr pt d du` q` l` bdr` n c` `shuc` cd` msdqlnq od n
rdft q` cn

Z

N pt d rdodqbdad bitrs` l dmsd` d hf nbñ cd pt d` oqu` cdl nmrsgd pt d`
rht` n cdcdrdl oqdfn m n sdnq` rlc n b` tr` c` un t ms` qñ l dmsdod n rdft q` cn
n pt d` c` o` s` cn` bnnch n cn bnnsglut hmsd hmc hulet` d hfd` cdukc`
cdl nmrsg` n onq dd cd pt d` bdr` n cd rt` `shuc` cd dbnm l lb`
`msdqlnql dmsd cdrdmun ulc` enhbdr` c` onq bnnch n` gdñ` rt` unns` cd nt
rd` onq b` tr` lmun t ms` qñ

Z

C h msd cd sncn drrd bnnmsd sn e` rd ll oqdrbhmc ud pt d rd` ot qd n l nshnr pt d
dunt` bdr` n c` `shuc` cd dbnm l lb` dl oqdr` qñ nt oqrehrhm` d dqble`
`msdqlnql dmsdod n bnnsglut hmsd hmc hulet` s` bnl n rdudqble` rd n dl oqdf cn
odch cdl hr n nt cdt b` tr` ` qdrbh n cn unbt n itrshb` mcnrd`
oqnqnf` n cn 1ª cn` qs 04 c` Kdh 7 102.80 `odm` r m` gls sld cd
bnl oqu` n cd pt d` `shuc` cd` msdqlnqenhbdr` c` cdenql` lmun t ms` qñ od n
bnnsglut hmsd hmc hulet`

**com um grave risco de se confundir inadimplência com
"desemprego involuntário".**

IVANIR CESAR IRENO JUNIOR
Juiz Federal